

PETITION - SET ASIDE YOUR CONVICTION AND HAVE THE CASE DISMISSED

IN THE COURT
(Sentencing court - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

APPLICATION FOR SET-ASIDE, DISMISSAL AND DISCHARGE, I.C. Sec. 19-2604(1)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under I.C. Sec. 19-2604(1) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

Where sentence was imposed but suspended, or was withheld, on the defendant's application and a satisfactory showing of compliance with probation, or graduation from an authorized drug court or mental health court program, the court may terminate the sentence or set aside the plea or conviction and finally dismiss the case and discharge the defendant. Final dismissal restores civil rights. It does not hide the record and it is not an expungement.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - sentence type] Was your sentence suspended, or was judgment withheld?

.....

.....

[C2 - probation compliance] Did you comply at all times with the terms and conditions of probation?

.....

.....

[C3 - drug or mental health court graduation] Did you graduate from an authorized drug court or mental health court program, and comply during any subsequent probation?

(Asked on the program-graduation route rather than the probation-compliance route.)

.....

.....

[C4 - still on probation] Are you still on probation?

.....

.....

[C5 - sex offender registration] Does the offense require sex offender registration under Sec. 18-8304?
Those offenses are excluded from this route.

.....

.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under I.C. Sec. 19-2604(1).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:track-only:ID:id_set_aside_dismissal

FILING INSTRUCTIONS - SET ASIDE YOUR CONVICTION AND HAVE THE CASE DISMISSED

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Application for Set-Aside, Dismissal and Discharge, I.C. Sec. 19-2604(1).

Where sentence was imposed but suspended, or was withheld, on the defendant's application and a satisfactory showing of compliance with probation, or graduation from an authorized drug court or mental health court program, the court may terminate the sentence or set aside the plea or conviction and finally dismiss the case and discharge the defendant. Final dismissal restores civil rights. It does not hide the record and it is not an expungement.

WHERE IT GOES

Sentencing court

The defendant's application is made to the court that imposed or withheld sentence. County practice on Sec. 19-2604 applications is unverified.

Venue: The sentencing court.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee for this route - the record says: "The source review does not state a filing fee for this application.". The office that answers it is the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.). No committed record states a fee-waiver procedure for this route - the record says: "The source review does not address a fee waiver for this application.". Ask the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.) for its own fee-waiver application.

WHO MUST BE SERVED

No committed record this packet binds states a service requirement for this route - the record says: "Blocked pending confirmation. The addendum lists service among the items counsel must confirm.". The office that answers who must be served, and how, is the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.). Notice: the record says "The source review does not state a notice requirement for this application.", so the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.) is the office that answers it.

WHAT THE RECORD SAYS YOU MUST KNOW

- Warn that a dismissal granted under Sec. 19-2604(1) permanently disqualifies the record from the Sec. 67-3004(10) ISP expungement. It does not disqualify the record from Clean Slate shielding.
- Final dismissal restores civil rights. It does not hide the record, and it is not an expungement.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- A Sec. 19-2604 dismissal already happened or is being contemplated, because the sequencing changes what relief remains.
- The record involves sex offender registration.
- The person wants their firearm rights or civil rights back, which is Sec. Sec. 18-310 and 18-3316 territory.
- The record is federal, tribal, or from another state.
- Immigration, professional licensing, peace officer employment, or firearm consequences are in play.

THE PAGES IN THIS SET

- id_set_aside_dismissal-primary-filing-1: the composed petition, on this route's own statutory ground (Set aside your conviction and have the case dismissed)

Route: obligation:track-only:ID:id_set_aside_dismissal